

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JUSTIN VILORIA,

Index No.

Date Index No. Purchased:

Plaintiff,

-against-

Plaintiff designates NEW YORK County as the place of trial.

THE CITY OF NEW YORK,
ARHENIS LOPEZESTEVEZ,
and JOHN DOES,

The basis of venue is the locus of the events in the Complaint

SUMMONS

Defendants.

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To the above-named Defendant(s):

Please take notice that you are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
July 8, 2022



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Defendants' address:

City of New York
c/o Corporation Counsel
100 Church Street
New York, NY 10007

Arhenis Lopezestevez, Shield # 17797
c/o NYPD 33rd Precinct
2207 Amsterdam Avenue
New York, NY 10032

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JUSTIN VILORIA,

Index No.

COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK,
ARHENIS LOPEZESTEVEZ,
and JOHN DOES,

Defendants.

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Plaintiff Justin Viloría, by his attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from various civil rights violations against Justin Viloría (“Viloría” or “Plaintiff”) by New York City police officers. Plaintiff asserts claims for *inter alia* false arrest and malicious prosecution under New York State and New York City Law against the individual defendants, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney’s fees pursuant to applicable State and City laws.

VENUE AND JURISDICTION

2. Venue is proper in New York County Supreme Court pursuant to CPLR

Section 503 because the acts complained of occurred in New York County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. Plaintiff has complied with N.Y. General Municipal Law Section 50-E by serving a notice of claim upon the defendants. More than 30 days have elapsed since said claim was presented and the claim has not been satisfied. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

5. At all times relevant herein, Plaintiff was a resident of the State of New York.

6. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York.

7. Defendant City of New York is authorized by law to maintain the NYPD, is ultimately responsible for the New York City Police Department ("NYPD"), and assumes the risks incidental to the maintenance of it and its employees.

8. The individually named defendants Arhenis Lopezestevez and John Does (collectively, the "individual defendants") are and were at all times relevant herein officers, employees and agents of the NYPD.

9. Each individual defendant is sued in his or her individual and official capacity. At all times mentioned herein, each individual defendant acted under the color of state

law, in the capacity of an officer, employee, and agent of defendant City of New York (“Defendant City”).

10. At all times relevant herein, the individual defendants were acting as duly appointed and acting NYPD officers, servants, employees, and agents of Defendant City; for, on behalf of, and with the power and authority vested in them by Defendant City; and they were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

STATEMENT OF FACTS

11. In the early morning hours of June 18, 2021, Viloría and his pregnant girlfriend, Ashly Ramos (“Ramos”), were together in their rented room in 548 West 164 Street in Manhattan, Apartment 1G (the “Apartment”).

12. Ramos was pregnant and dressed in her sleeping clothes – just underwear and a tank top shirt.

13. Ramos and Viloría were renting their room from Ruth Hedian (“Hedian”), who in the preceding months demanded that they leave the room, harassing, menacing, and taking them to Housing Court in order to achieve that effect.

14. At one point, after an unlawful eviction attempt, police officers came to the Apartment and instructed Ms. Hedian that her tenants had rights, that it was illegal to force them out.

15. After Hedian initiated a housing court proceeding, Viloría and Ramos agreed to move out of the Apartment by September 2021.

16. That was not soon enough for Hedian, and since Hedian could not lawfully get Ramos and Viloría out of her apartment as quickly as she wished, she resorted to violence.

17. Around 1:00 a.m. on June 18, 2021, Hedian sent her two sons to attack Ramos and Viloría.

18. Hedian's two sons – one of whom wielded a long kitchen knife – busted into Ramos and Viloría's room, slashed Viloría's hand with the knife, and smashed a glass bottle on his head.

19. Hedian followed her sons to the room.

20. As the sons continued to attack, Ramos tried to record the attack on her phone, but one of the sons (and /or Hedian) grabbed her phone, and the that son also grabbed Viloría's phone and ran out of the Apartment with the phones.

21. Meanwhile, after the kitchen knife ripped into Viloría's hand, Viloría was able to twist away and run out of the room and Apartment with Ramos.

22. Hedian and one of her sons (named Oliver Hedian Rodas ["Oliver"]) remained in the Apartment.

23. Ramos went to a neighbor and called the police.

24. Viloría went outside to catch his breath.

25. Other neighbors were outside and had seen one of the sons (with the phones) leaving the scene.

26. When NYPD officers, including PO Lopezestevez and PO Does, arrived, they saw Viloría's bleeding, lacerated hand and head.

27. Viloría, who had glass caught in his scalp, explained how he had been attacked and slashed in the Apartment.

28. Viloría also explained that one of his attackers ran away with his and Ramos' phones.

29. In the hallway, the defendant officers saw Ramos, who also explained how she and Viloría had been attacked by Hedian's two sons.

30. Ramos identified herself and indicated that she called the police to report the assault.

31. Ramos and Viloría also explained that one of Hedian's sons had run away with their cell phones, and there were neighbors at the scene who had observed one of the sons run away from the Apartment building.

32. When the defendant officers knocked on the Apartment door, there was no response.

33. Ramos indicated that they were probably getting rid of the kitchen knife they had cut Justin with.

34. When Hedian finally opened the Apartment door, the defendant officers observed absolutely no marks or injuries on her or on Oliver.

35. Hedian and Oliver conveniently and incredibly claimed that Ramos and Viloría violently attacked them. Their stories were obviously bogus, inconsistent, and clearly rooted in their desire to get out of trouble and in their longstanding animus toward Ramos and Viloría.

36. There were absolutely no injuries, marks, or any other corroborating signs of their false story – and it was patently obvious that Hedian and Oliver fabricated their bogus story to cover up their illegal, violent conduct.

37. Both Hedian and Oliver refused medical attention.

38. Viloría, by contrast, needed to be hospitalized to get stitches and treat his excruciating pain.

39. Based on Hedian's and Oliver's obviously false accounts – and without asking them basic questions, without exercising any critical scrutiny, without speaking to neighbors, without looking at security videos, without trying to track down the escaped son, without investigating the scene of the attack, without conducting anything that could be described as a reasonable investigation – the defendant officers decided to arrest Ramos and Viloría for assaulting Hedian and her son.

40. Various neighbors were present at the scene and had relevant information (including about Hedian's escaped son and relevant background information regarding Hedian's longstanding animus toward Plaintiff) – but the defendant officers had no interest in speaking with them.

41. Although the officers knew Ramos and Viloría were innocent victims, they arrested them in accordance with the NYPD's widespread custom and practice of arresting innocent civilians without adequate investigations simply because other civilians level criminal accusations against them – as if a mere accusation amounted to probable cause.

42. Viloría was taken, under arrest, to the hospital where he received stitches to his cut hand and head.

43. He was then transported to the 33rd Precinct, where he was booked and processed.

44. After hours in the holding cells, Viloría was taken to Central Booking where he continued to be detained in holding cells.

45. His physical pain was so excruciating as the pain medication wore off that he had to be taken again to the hospital for additional treatment.

46. After approximately forty-eight hours in custody, Vilorio was arraigned in New York County Criminal Court, charged under Docket No. CR-013441-21NY with assault in the third degree and criminal obstruction of breathing or blood circulation, for allegedly striking Oliver Hedian Rodas “about the face with a bottle, thereby causing a cut to his nose” and applying “pressure to his neck, thereby causing a laceration to the right side of his neck.”

47. The defendant officers knew that Oliver had no cuts, lacerations, or marks of any kind.

48. Vilorio was released on his own recognizance but was ordered to return to New York County Criminal Court on a future court date; otherwise, the Court threatened, a warrant for his arrest would be issued.

49. Vilorio made all required court appearances.

50. On October 6, 2021, all charges against Vilorio were dismissed.

DAMAGES

51. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages in a sum exceeding the jurisdiction of all lower courts:

- a. Violation of his rights under the New York State Constitution;
- b. Violation of his rights under New York City law;
- c. Loss of liberty;
- d. Emotional distress, degradation, and suffering.

CAUSES OF ACTION

FIRST CLAIM

False Imprisonment under N.Y. State Law

52. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

53. The individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

54. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM**Malicious Prosecution Under N.Y. State Law**

55. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

56. As detailed above, the individual defendants intentionally and with actual malice initiated a prosecution against Plaintiff without probable cause. The prosecution terminated in Plaintiff's favor when all charges against him were dismissed.

57. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM**Right of Security Against Unreasonable Search and Seizure and Excessive Force
Under New York City Administrative Code**

58. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

59. As detailed above, the individual defendants intentionally violated Plaintiff's right to be secure against unreasonable searches and seizures, in violation of New York City Administrative Code Title 8, Chapter 8: The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force Regardless of Whether Such Force Is Used In Connection with a Search or Seizure. § 8-803 Civil action for deprivation of rights.

60. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM

Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law Against Defendant City of New York

61. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

62. Defendant City owed a duty of care to Plaintiff to prevent the violations sustained by Plaintiff.

63. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions. Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants could potentially cause harm.

64. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

65. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

FIFTH CLAIM***Respondeat Superior*
Against Defendant City of New York**

66. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

67. Defendant City of New York employed all of the individual defendants at the time of the incident.

68. At the time of the incident, all of the individual defendants were acting in the scope of their employment with the City of New York.

69. During the commission of the incident in question, all of the individual defendants were working in furtherance of their employment with the City of New York.

70. Under the doctrine of *respondeat superior*, the City of New York is responsible for the wrongdoing of its employees acting within the scope of their employment.

71. The plaintiff is entitled to compensatory damages from the City of New York in an amount to be determined at trial, together with attorneys' fees and costs.

72. As a direct and proximate result of the acts of the New York City employees detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Justin Vilorio in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;

- c. A court order, pursuant to NYC Administrative Code Title 8, Chapter 8 (§ 8-805 Relief), that Plaintiff is entitled to reasonable attorney's fees and court costs;
- d. Such other and further relief as this Court deems appropriate.



DATED: New York, New York
July 8, 2022

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ATTORNEY'S VERIFICATION

I, Cyrus Joubin, the Plaintiff's attorney in this matter, hereby affirm this 8th day of July, 2022, under penalties of perjury, that the following is true: I am an attorney admitted to practice in the Courts of New York State, and I have read the annexed Complaint and know the contents thereof, and the same is true to my knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason I (rather than Plaintiff) make this verification is because Plaintiff does not reside in the county where the undersigned attorney has his office.



Cyrus Joubin